

26CMCV00281 26CMCV00281

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-30

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Defendant moves to compel Plaintiff's claims to arbitration. Defendant contends that Plaintiff executed a voluntary arbitration agreement upon admission to Defendant's medical facility. Plaintiff does not oppose this motion.

Defendant has attached a copy of the arbitration agreement between Plaintiff and Defendant, signed by Plaintiff and by a facility representative. The agreement states that "any dispute between Resident... and [Defendant], and their its owners, investors, operators, officers, directors, administrators, staff, employees, agents, and any management and administrative services company and all related entities and individuals... including any action for injury or death arising from negligence, torts, intentional tort and/or statutory causes of action (including all California Welfare and Institutions Code sections, all California Business and Professions Code sections, Health and Safety Code section 1430), and all other statutory claims under any applicable California code, will be determined by submission to binding arbitration and not by lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings... By signing this agreement, the parties waive their right to commence and/or be a party to any class or collective action in any court against the other party relating in any manner whatsoever to the Resident's residency at the Facility." (Chevez Decl., Ex. A.) Based on the court's review of the complaint, it is apparent that the instant action arises out of or relates to Plaintiff's residency at the facility. Therefore, the arbitration provision applies to all parties in this action.

Under Gamboa and Iyere, attaching a copy of the arbitration agreement to the motion constitutes setting forth the agreement's provisions in the motion, which is sufficient to fulfill Defendant's initial burden of proving the existence of an arbitration agreement between the parties. The burden now shifts to Plaintiff to establish any fact necessary to her opposition. As Plaintiff has not opposed this motion, Plaintiff has failed to carry her burden.

The court will therefore grant Defendant's motion to compel Plaintiff's claims to arbitration. The case management conference is vacated. The order to show cause re failure to file proof of service is discharged. The court sets a status conference re arbitration for March 30, 2027, 8:30 a.m. in Department A.

Defendant is ordered to give notice.